ANNA JIM
versus
PETER JIM
and
CHARLES JACK (represented by Richmore Sifiyali by virtue of Power of Attorney)
and
MASTER OF THE HIGH COURT

HIGH COURT OF ZIMBABWE
MAXWELL J
HARARE; 16 January 2026 and 24 March 2026

Opposed Special Plea

N. T. Tsarwe, for the 2nd Defendant (Applicant)
P. Chimombe, for the Plaintiff (Respondent)
No appearance for the 1st and 3rd Defendants

MAXWELL J: On 31 July 2025 Plaintiff issued summons seeking the setting aside and reversal of all steps executed in the estate on the late January Jim. The late January Jim passed away on 31 January 1994. His wife, Dorcas Jim passed away on 23 July 1999. The Plaintiff and the first Defendant are grandchildren of the late January and Dorcas Jim. The late January and Dorcas Jim acquired Stand Number 1294 Mufakose Township, otherwise known as Stand Number 53 Kafudzamombe Road, Mufakose, Harare.

Plaintiff's mother passed away on the 10th of February 1998 and first Defendant's mother passed away on 1 November 1995. The other children of the late January and Dorcas also passed away. Only their grandchildren are beneficiaries of the estate.

Sometime in 2018, first Defendant registered the estate of the late January Jim under DR 1944/18. He was subsequently appointed as Executive Dative and was issued with a letter of administration in terms of the provisions of the Administration of Estates Act [*Chapter 6:01*]. Plaintiff avers that first Defendant mispresented to the third Defendant that he was the sole beneficiary of the late January Jim. He awarded himself the only immovable property in the estate. The rights in the property were ceded to him and he proceeded to sell the property to the second Defendant. On the 3rd of January 2023, second Defendant obtained an agreement of assignment from the City of Harare. Plaintiff averred that her right to inherit a share in the immovable property as a beneficiary of the Estate Late January Jim was

prejudicially affected as a result of the first Defendant's fraudulent misrepresentation to the third Defendant.

In his plea, first Defendant disputed the Plaintiff's capacity as a beneficiary of the Estate Late January Jim. He stated that Plaintiff's real name is Esnath Tumbare and the birth certificate in the name of Anna Jim is a result of fraudulent activities. He disputed that Plaintiff is a biological granddaughter of the late January Jim. He asserted that he is the only recognized beneficiary of the Estate Late January Jim. He disputed misrepresenting any facts to the third Defendant. He submitted that second Defendant's purchase of the property was above board as evidenced from the City of Harare.

Second Defendant filed a plea in bar /abatement stating that the matter is *res judicata* following a judgment in the Magistrate's Court under case number HRE-C-CG 432/23 that stated that the immovable property was lawfully sold to him and he was the owner of the property. Second Defendant also pleaded that the matter was *res judicata* following the dismissal of an application for a declaratur in HCH 2759/23. The Plaintiff had sought the nullification of the sale and transfer of the property to the second Defendant on allegations of fraud. Second Defendant also submitted that the Plaintiff had dirty hands as she is in defiance of an extant order for her eviction under Case Number HRE-C-CG 432/23.

In response to the plea in bar/abatement, Plaintiff stated that the judgment in case number HRE-C-CG 432/23 was successfully appealed against under case number HCHCIVA 65/23 and the eviction of the Plaintiff was set aside. Further that the matter under HCH 2759/23 was not dealt with on the merits as the court found that there are disputes of facts which ought to be dealt with through action proceedings. Plaintiff submitted that the issue of *res judicata* does not arise in the circumstances of this case.

SECOND DEFENDANT'S HEADS OF ARGUMENT

Second Defendant submitted that the Plaintiff's claim is *res judicata* and she is approaching the court with dirty hands. He referred to the case of *Wolfendan* v *Jackson* 1985 (2) ZLR 313 at 316 where GUBBAY CJ (as he then was) stated that

> "The *exceptio rei judicatae* is based principally upon the public interest that there must be an end to litigation and that the authority vested in judicial decisions be given effect to even if erroneous."

Second Defendant pointed out that there are two previous extant decisions of the court which have not been appealed against. He submitted that Plaintiff is seeking relief on the same grounds, against the same parties as in the previous two court decisions. He also

referred to the case of *Madondo* v *Fyfe & Ors* 1988 (1) ZLR 138 at 140 where REYNOLDS J (as he then was) stated:

> "It is trite that, in order for the special plea of *res judicata* to succeed, it must be established that the judgment given in the same subject matter, was founded on the same grounds, and was either a judgment *in rem*, or was between the same parties or their privies."

Second Defendant argued that the judgment in HRE-C-CG 432/23 is a judgment in rem. A judgment *in rem* was defined in the case of *Madondo* v *Fyfe & Ors supra* as follows:

> "The judgment of a court of competent jurisdiction determining the status of a person or thing, as distinct from the particular interest in it of a party to the litigation. Apart from the application of the term to persons, it must affect the "res" in the way of condemnation, forfeiture, declaration of status or title, or order for sale of transfer."

Second Defendant also argued that the matter is *res judicata* as case number HCH 2759/23 concerned the same property. He pointed out that Plaintiff had relied on the same ground of alleged fraud and misrepresentation in seeking a declaratory order that had the effect of reversing steps by the first Defendant.

Second Defendant also argued that the Plaintiff had come to court with dirty hands. He cited the cases of *Deputy Sherriff Harare* v *Mahleza & Anor* 1987(2) ZLR 425 and *Stelix Civils* (*Pvt*) *Ltd* v *Moyo* HB 79/24 in support of the position that a Litigant cannot seek the court's assistance if they are guilty of a lack of probity or honesty in respect of the circumstances which cause them to seek relief from the court. Further that an extant order of court must be obeyed.

Second Defendant prayed for the dismissal of the summons until the Plaintiff has fully complied with the order directing her to vacate the immovable property in dispute.

PLAINTIFF'S HEADS OF ARGUMENT

Plaintiff disputed that the matter was *res judicata*. She submitted that the question regarding the fraudulent misrepresentation of the first Defendant to the third Defendant as well as the proper distribution of the Estate of the late January Jim remains in issue. She referred to the learned author, Isaacs, in his text Becks' Theory and Principles of Pleading in Civil Actions wherein in what respect a previous judgment may justify the plea of *res judicata* is specified as follows:

> "The previous judgment is only *res judicata* as regards matters between the parties which the judgment actually affects and when the plea is raised, it therefore becomes essential to determine whether the present claim is actually affected by the previous judgement." See also *Woffenden* v *Jackson* 1985 (2) ZLR 313 (S) at 316 B-C.

Plaintiff stated the requirements of the plea of *res judicata* to succeed as

a) the parties must be the same as in the prior matter.
b) the cause of action must be the same.
c) the prior case must have been decided on the merits.

She argued that all requirements must be met and are to be considered cumulatively. She stated that where one requirement is not met, the defence fails. She argued that a matter dismissed on technicalities where the court does not delve into merits of the matter is not decided to finality and has no effect of rendering any subsequent proceedings *res judicata*, allowing the parties to bring back the matter for re-litigation. She argued that HCHF 2759/23 was dismissed on a technicality. In any event though the case was on the same facts, the proceedings are distinct and have different objectives. In the court *a quo*, second Defendant sought to assert his rights based on an agreement of cession whereas the present matter seeks the nullification of the appointment of first Defendant as the Executor Dative of the Estate Late January Jim under DR 1944/18. She also pointed out that judgment HCHCVA 65/23 was not dealt with on the merits. Plaintiff cited the case of *Chimpondah & Anor* v *Muvami* HH 81/07 in support of the position that a judgment on technicalities does not constitute a final and definitive judgment in the matter.

On the dirty hands principle, Plaintiff argued that it does not apply as the second Defendant has not put in motion the provisions of Rule 69(1) for the execution of any judgment for ejectment. She prayed for the dismissal of plea in abarement.

ANALYSIS

The parties are agreed that there have been prior proceedings involving them. They are however not agreed that the cause of action is the same. In HRE-C-CG 432/23 the matter was for *rei vindicatio* based on the agreement of cession between the second defendant and the City of Harare. In my view, the matter did not involve the question of the administration of the Estate Late January Jim. The agreement of cession is a fruit from the administration of the estate. I am not persuaded that the cause of action is the same.

In HCHF 2759/23 the matter was dismissed on a technicality. The parties' rights were not defined as the court found that there were disputes of fact which could not be resolved on the papers HCHCVA 65/23 also did not define the parties' rights as it deferred the issue to HCHF 2759/23. At the end of the day, the merits of the dispute between the parties remain unresolved.

In *Anjin Investments (Pvt) Ltd* v *The Minister of Mines and Mining Development and Ors* CCZ 6/18 it is stated that to be successful, where *res judicata* is raised, all the prerequisites for the plea must exist. Whilst there is a judgment that confirms the ownership of the immovable property by second Defendant by virtue of the agreement of cession signed with the City of Harare, there has not been reference to any judgment that confirms the proprietary of the administration of the estate Late January Jim.

I am not persuaded that the plea of *res judicata* is appropriate in the circumstances of this case.

On the issue of dirty hands, as submitted for the Plaintiff, there is a procedure for enforcing a judgment of the court. Second Defendant has not submitted that the Plaintiff is defiant of the process under Rule 69(1) of the High Court Rules 2021. The objection also fails.

Accordingly, the plea in bar/abatement fails. The following order is made.

The plea in bar/abatement be and is hereby dismissed.

MAXWELL J.....

Claude Petronella & Nomazulu, Plaintiff's Legal Practitioners.
Mauwa & Associates, Defendant's Legal Practitioners
Tadiwa & Associates, 2nd Defendant's Legal Practitioners